

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUPP030411: BEVERLY GLASS, ANDREA JANSEN, ANTHONY PONTICELLI,
ALFRED PONTICELLI, INDIVIDUALS AND AS SURVIVING HEIRS, PERSONAL ...
vs LOS ROBLES HOSPITAL & MEDICAL CENTER, et al.**

09/10/2026 in Department 21

**Motions to Compel PRODUCTION OF DOCUMENTS REQUESTED IN PLAINTIFFS
NOTICE OF DEPOSITION OF DEFENDANT, LOS ROBLES REGIONAL MEDICAL
CENTER dba LOS ROBLES HOSPITAL AND MEDICAL CENTERS PERSON(S)
MOST QUALIFIED MARICIA DUARTE and PRACHI JOSHI-MULEY**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Plaintiff’s Motion to Compel Production of Documents from Duarte Deposition and Request for Sanctions; and
- (2) Plaintiff’s Motion to Compel Production of Documents from Joshi-Muley Deposition and Request for Sanctions

Tentative Ruling:

The attorneys are ordered to engage in a proper meet and confer effort, **in person at a location of their choosing, or over videoconference**, within the next 15 days. Following the meet and confer, the parties shall draft a joint declaration describing the meet and confer efforts and identifying the matters still in dispute. This joint declaration is to be filed with the Court no later than November 2, 2026.

The hearing on these motions shall be continued to November 16, 2026, at 8:30 am.

Plaintiff’s counsel shall give notice within two (2) court days.

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Discussion:

The basic purpose of all discovery is to take the “game” element out of case preparation by enabling parties to obtain the evidence necessary to evaluate and resolve their dispute beforehand. (*Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1107; *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 473-474.) Each party has a presumptive right to inquire about any matter which – based on reason, logic and common sense – might (1) be admissible, (2) lead to admissible evidence, or (3) reasonably assist that party in evaluating the case, preparing for trial and/or facilitating resolution. (See CCP §2017.010; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

Defendant objects to the motion on the ground that plaintiffs’ counsel failed to engage in a good faith effort to meet and confer, as required by CCP §2025.480(b). A meet and confer declaration “shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

There was no meeting “in person, by telephone or by videoconference” – and more importantly no request to do so. The entire meet and confer effort consisted of emails from plaintiffs’ counsel:

- ☛ June 23, 2026: “The above documents are plainly relevant and fall under the categories of documents requested in the deposition notice ... Please confirm by this Friday, June 26, 2022, that Defendant will produce these documents, and provide a date certain for production. If Defendant contends that any category does not exist, is not within Defendant’s possession, custody, or control, or is withheld on any basis, please identify the category, state the basis for the position, and describe the search undertaken. Plaintiffs reserve all rights, including the right to seek an order compelling production, sanctions, and a further PMQ deposition after the requested documents are produced. Should we not receive a response by Friday, June 26, 2022 with an agreement to produce such documents, we will proceed with filing a motion to compel.”
- ☛ July 1, 2026: “Since the above documents have not yet been produced in response to the document requests laid out in our deposition notice, we are reserving the right to take a Volume 2 pending the production date of these additional documents. We ask that your client locate and produce these documents on or before Friday, July 11, 2026, so that we may avoid unnecessary motion practice.”
- ☛ July 17, 2026: “Ms. Muley’s testimony establishes that these documents exist, are generated and maintained in the ordinary course of Defendant’s regulatory compliance activities, and are used to track, communicate, monitor, and report CDPH investigations, deficiencies, corrective actions, and regulatory compliance. They therefore fall squarely within the scope of Plaintiffs’ Requests for Production served with the deposition notice. Please produce the foregoing documents within ten (10) days and provide a date certain for a Volume 2. If Defendants decline to do so,

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Plaintiffs will proceed with a motion to compel further production and will seek monetary sanctions.”

In essence, no statutory meet and confer took place. A meet and confer is supposed to be a “serious effort” to resolve the dispute. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.) It is “more than the mere attempt by the discovery proponent to persuade the objector of the error of his ways ... the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294. How much “meet and confer” effort depends on many factors, most notably the objectively reasonable “prospects for success.” (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432–433.)

The emails here from Attorney Johnson state an intent to seek judicial intervention absent compliance with his requests, rather than an olive branch over coffee. Particularly concerning is the representation by defense counsel who advises that he “telephoned plaintiff counsel and asked for a two-week extension [to provide additional documents], with the response that it was ‘too late.’” (Bunch Decl Para 2.) If this is accurate, it appears that defense counsel was willing to discuss offering to provide a supplemental response, and potentially obviate the need for any motion, but plaintiff’s counsel said no.

With that, the attorneys are hereby ordered to engage in a proper meet and confer effort, **in person at a location of their choosing and convenient for both attorneys, or over videoconference**, within the next 15 days. Following the meet and confer, the parties shall draft a joint declaration describing the meet and confer efforts and identifying the matters still in dispute. This joint declaration is to be filed with the Court no later than November 2, 2026.

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To aid in the meet and confer process, this Court provides the following:

A party seeking to depose another party may, as part of the deposition notice, may specify “with reasonable particularity any materials or category of materials, including any electronically stored information, to be produced by the deponent.” (CCP §2025.220(a)(4).) Service of a deposition notice on a party “is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (CCP §2025.280(a).)

In response to a deposition notice, any party may serve a written objection identifying issues relating to service, form, content, date, location, or the list of documents sought. A party concerned about any of the aforementioned areas may also “move for an order staying the taking of the deposition and quashing the deposition notice.” (CCP §2025.410(c).) A motion to stay/quash puts an automatic halt on the deposition. (*Id.*) Critically, all objections to form, content and manner are deemed waived unless provided to the deposing party in writing “at least three calendar days prior to the date for which the deposition is scheduled.” (CCP §2025.410(a).) Assuming no stay/quash motion or motion for a protective order, or specific written objection, the deponent has an affirmative obligation to appear, answer all questions, and

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produce all requested documents “under the deponent’s control that is specified in the deposition notice. (CCP §2025.480(a).) Failing to do so empowers the party seeking discovery to move the court for an order compelling attendance, answers and/or production. (*Id.*)